

		provides that “[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . . by adding . . . the name of any party.” “Amendments to complaints under Code of Civil Procedure section 473, subdivision (a), are liberally allowed to substitute in plaintiffs with standing for original plaintiffs without standing.” (<i>CashCall, Inc. v. Super. Ct.</i> (2008) 159 Cal.App.4th 273, 287, internal quotes omitted, citing <i>Cloud v. Northrop Grumman Corp.</i> (1998) 67 Cal.App.4th 995, 1004-1011.) This “general rule allowing substitution of new plaintiffs with standing in place of original plaintiffs without standing applies to class actions” and equally to “a plaintiff who initially had standing when the class action complaint was filed, but subsequently lost his or her standing” and to “a plaintiff who never had standing when the complaint was filed.” (<i>Id.</i> at pp. 288-289.) Plaintiff shall give notice.
109	Jefferson vs. Alignment healthcare USA, LLC, a Delaware limited liability company; 2026-01546489	Motion to Compel Arbitration In light of Plaintiff Jenny Jefferson’s Non-Opposition (ROA #21) to Defendant Alignment Healthcare USA, LLC’s Motion to Compel Individual Arbitration of Plaintiff’s Claims and Dismiss Action (ROA #14), the Court GRANTS Defendant’s motion. Plaintiff is ORDERED to arbitrate her individual claims against Defendant. Plaintiff’s class claims against Defendant are hereby DISMISSED WITHOUT PREJUDICE as to the rights of the absent putative class members. This action is otherwise STAYED until the arbitration is had pursuant to Code of Civil Procedure section 1281.4. An ADR review hearing is scheduled for February 25, 2027 at 9:30AM in Department CX102. The parties shall submit a joint status report 10 days in advance of the hearing. Defendant shall give notice of this ruling.
110	NB CP Cincy, DST vs. Versity Invest, LLC 2026-01543537	Motion to Compel Mediation All Defendants’ Motion to Compel Mediation and Stay Proceedings Pending Mediation is DENIED. Defendants, as the moving parties, have not established that the Court has authority to compel mediation in this case. In their opening brief, Defendants cite Code of Civil Procedure (“CCP”) section 1775. (Mot. at p. 7.) However, CCP sections 1775, et seq. relate to the Civil Action Mediation Program, which is a separate court-ordered program that also applies only mandatorily to Los Angeles County Superior Court. (CCP, § 1775.2, subd. (a).) Defendants make no showing that this case even falls under CCP sections 1775, et seq. Defendants also Evidence Code section 1116. (Mot. at p. 10.) But Evidence Code sections 1115, et seq. deal with the <i>confidentiality</i> of mediation proceedings, and section 1116, subdivision (a) explicitly states that

“[n]othing in this chapter expands or limits a court’s authority to order participation in a dispute resolution proceeding” or “authorizes or affects the enforceability of a contract clause in which parties agree to the use of mediation.”

Defendants also cite *Frei v. Davey* (2004) 124 Cal.App.4th 1506. (Mot. at p. 7.) However, *Frei* involved the resolution of a *motion for attorneys’ fees* by enforcing a contractual provision that bars prevailing parties from recovery attorneys’ fees if they commence a court action without first attempting to resolve the matter through mediation. (*Frei, supra*, 124 Cal.App.4th at pp. 1508-1509.) *Frei* does not hold that a court may enforce contractual mediation by granting a *motion to compel the parties to participate in mediation*.

Defendants also cite *Cione v. Foresters Equity Services, Inc.* (1997) 58 Cal.App.4th 625 and CCP sections 1281 and 1281.4. (Mot. at p. 7.) However, both *Cione* and the cited statutory provisions involve motions to compel *arbitration*, not *mediation*.

Moreover, there is also contrary authority indicating courts may *not* compel parties to mediation, as mediation is “voluntary,” and “unless the parties have agreed to a binding award, any party who voluntarily enters mediation may revoke its consent and withdraw from the dispute resolution process.” (*Jeld-Wen, Inc. v. Super. Ct.* (2007) 146 Cal.App.4th 536, 540-541; see also Bus. & Prof. Code, § 467.7, subd. (a) [“Unless the parties have agreed to a binding award, nothing in this chapter shall be construed to prohibit any person who voluntarily enters the dispute resolution process from revoking his or her consent, withdrawing from dispute resolution, and seeking judicial or administrative redress”]; *Kirschenman v. Super. Ct.* (1994) 30 Cal.App.4th 832 [trial “court had no statutory authority *to require* the parties to participate in mediation,” and “parties are specifically not prohibited from revoking consent to participate in voluntary dispute resolution”].) Here, Defendants have not shown that the parties agreed to any “binding award” through mediation.

In fact, the cited “Dispute Resolution” provision also states only that “[t]he parties *will* first attempt in good faith to promptly resolve the Dispute by negotiations between such parties,” but “[i]f the Dispute has not been resolved by the disputing parties within 60 days after the disputing party’s notice, . . . either party *may* initiate mediation of the Dispute.” (ROA #30, Wettengel Decl., Exh. 1 [Versity I Operating Agreement], ¶¶ 13.4(a), (b), emphasis added.) Not only does the word “may” in the subparagraph (b) suggest that initiating mediation is optional, but subparagraph (c) then goes on to state that “if either party will not participate in a mediation, then the aggrieved party may file an appropriate action in any state . . . court located within the County of Orange in the State of California.” (*Id.* at ¶ 13.4(c).) Therefore, the cited “Dispute Resolution” provision does not even itself require the parties to participate in mediation, much less provide for a court to compel the parties to mediate.

111	Versity Investments, LLC vs. Versity Invest, LLC	Motion to Compel Mediation All Defendants’ Motion to Compel Mediation and Stay Proceedings Pending Mediation are DENIED. Defendants, as the moving parties, have not established that the Court has authority to compel mediation in this case. In their opening brief, Defendants cite Code of Civil Procedure (“CCP”) section 1775. (Mot. at p. 7.) However, CCP sections 1775, et seq. relate to the Civil Action Mediation Program, which is a separate court-ordered program that also applies only mandatorily to Los Angeles County Superior Court. (CCP, § 1775.2, subd. (a).) Defendants make no showing that this case even falls under CCP sections 1775, et seq. Defendants also Evidence Code section 1116. (Mot. at p. 10.) But Evidence Code sections 1115, et seq. deal with the <i>confidentiality</i> of mediation proceedings, and section 1116, subdivision (a) explicitly states that “[n]othing in this chapter expands or limits a court’s authority to order participation in a dispute resolution proceeding” or “authorizes or affects the enforceability of a contract clause in which parties agree to the use of mediation.” Defendants also cite <i>Frei v. Davey</i> (2004) 124 Cal.App.4th 1506. (Mot. at p. 7.) However, <i>Frei</i> involved the resolution of a <i>motion for attorneys’ fees</i> by enforcing a contractual provision that bars prevailing parties from recovery attorneys’ fees if they commence a court action without first attempting to resolve the matter through mediation. (<i>Frei, supra</i>, 124 Cal.App.4th at pp. 1508-1509.) <i>Frei</i> does not hold that a court may enforce contractual mediation by granting a <i>motion to compel the parties to participate in mediation</i>. Defendants also cite <i>Cione v. Foresters Equity Services, Inc.</i> (1997) 58 Cal.App.4th 625 and CCP sections 1281 and 1281.4. (Mot. at p. 7.) However, both <i>Cione</i> and the cited statutory provisions involve motions to compel <i>arbitration</i>, not <i>mediation</i>. Moreover, there is also contrary authority indicating courts may <i>not</i> compel parties to mediation, as mediation is “voluntary,” and “unless the parties have agreed to a binding award, any party who voluntarily enters mediation may revoke its consent and withdraw from the dispute resolution process.” (<i>Jeld-Wen, Inc. v. Super. Ct.</i> (2007) 146 Cal.App.4th 536, 540-541; see also Bus. & Prof. Code, § 467.7, subd. (a) [“Unless the parties have agreed to a binding award, nothing in this chapter shall be construed to prohibit any person who voluntarily enters the dispute resolution process from revoking his or her consent, withdrawing from dispute resolution, and seeking judicial or administrative redress”]; <i>Kirschenman v. Super. Ct.</i> (1994) 30 Cal.App.4th 832 [trial “court had no statutory authority <i>to require</i> the parties to participate in mediation,” and “parties are specifically not prohibited from revoking consent to participate in voluntary dispute resolution”].) Here,
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		Defendants have not shown that the parties agreed to any “binding award” through mediation. In fact, the cited “Dispute Resolution” provision also states only that “[t]he parties <i>will</i> first attempt in good faith to promptly resolve the Dispute by negotiations between such parties,” but “[i]f the Dispute has not been resolved by the disputing parties within 60 days after the disputing party’s notice, . . . either party <i>may</i> initiate mediation of the Dispute.” (ROA #30, Wettengel Decl., Exh. 1 [Versity I Operating Agreement], ¶¶ 13.4(a), (b), emphasis added.) Not only does the word “may” in the subparagraph (b) suggest that initiating mediation is optional, but subparagraph (c) then goes on to state that “if either party will not participate in a mediation, then the aggrieved party may file an appropriate action in any state . . . court located within the County of Orange in the State of California.” (<i>Id.</i> at ¶ 13.4(c).) Therefore, the cited “Dispute Resolution” provision does not even itself require the parties to participate in mediation, much less provide for a court to compel the parties to mediate.
112	Padilla vs. Connect Staffing Inc. 2025-01524286	1. Motion to Compel Arbitration (Connect Staffing) 2. Joinder (Evans Manufacturing) 3. Motion to Compel Arbitration (Bar Bakers) 4. Case Management Conference 1. Defendant Connect Staffing Inc.’s Motion to Compel Arbitration Defendant Connect Staffing Inc.’s motion to compel arbitration is GRANTED. As an initial matter, Plaintiff does not dispute that the subject arbitration agreement is governed by the Federal Arbitration Act (FAA); that he has refused arbitration; and that the arbitration agreement applies to his individual claims alleged in this action. Plaintiff also does not contend that, if the Court orders Plaintiff to arbitrate his individual claims, that his class claims should not be dismissed. Instead, Plaintiff contends only that (1) no valid arbitration agreement exists and (2) the arbitration agreement is procedurally and substantively unconscionable. A. Existence of Valid Arbitration Agreement Both the FAA and the California Arbitration Act (CAA) require the existence of a valid Arbitration Agreement before arbitration can be compelled. (See 9 U.S.C. § 2; Code Civ. Proc. [CCP], § 1281.2.) The court must order arbitration if it determines that an agreement to arbitrate the controversy exists. (CCP § 1281.2.) The petitioner bears the initial burden of producing prima facie evidence of a written agreement to arbitrate the controversy, which can be satisfied either by setting forth the agreement’s provisions in the motion or by attaching to the motion a copy of the arbitration agreement purporting to bear the opposing party’s signature; “[f]or this step, it is not necessary to follow